

End User License Agreement (EULA) - Avalue Driver

Avalue Technology Incorporation ("Licensor") hereby grants the end user ("Licensee") a limited, non-exclusive, non-transferable, and revocable license to use the Avalue Driver (the "Software") solely in connection with Devices provided or expressly authorized by the Licensor. Licensee may only use this Software in accordance with the terms of this End User License Agreement ("EULA") if Licensee agrees to be legally bound by its terms. If Licensee does not agree to the terms of this EULA, Licensee is not authorized to use the Software and no license shall be granted to Licensee. In such case, Licensee must not install, copy, or otherwise use the Software.

1. Definitions

For the purposes of this Agreement:

- "**Licensor**" means Avalue Technology Incorporation and its affiliates, subsidiaries, parent companies, and any entities under common control.
- "**Licensee**" means the end user of the Software who is granted the license under this EULA.
- "**Software**" means the Avalue Driver and any updates, modifications, or documentation provided by Licensor.
- "**Device(s)**" means hardware products manufactured, distributed, or otherwise provided by the Licensor, or explicitly authorized in writing by the Licensor.
- "**Use**" means installing, executing, or otherwise using the Software on a Device in accordance with this EULA.
- "**Effective Date**" means the earlier of the date on which the Licensee first installs or first uses the Software.

2. Restrictions

Licensee shall not:

- Modify, reverse engineer, decompile, disassemble, or create derivative works of the Software.
- Rent, lease, sublicense, distribute, assign, transmit, host, outsource, disclose, commercially exploit, or otherwise transfer the Software without the Licensor's prior written consent.
- Use the Software with any unauthorized or third-party devices.
- Remove, alter, or obscure any proprietary notices (including copyright or trademark notices) of the Licensor or its affiliates, partners, suppliers, or licensors.
- The Software shall not be used for any unlawful purposes, including but not limited to violations of export control laws, or in connection with nuclear technology, military systems, or weapons development.

3. Intellectual Property

Licensor shall retain all rights, titles, and interests in and to the Software, including, but not limited to, all copyrights, patent rights, and other intellectual property rights therein. Licensee shall not, at any time, assert or claim any ownership interest in the Software or any associated intellectual property rights.

4. Updates to the Software

Licensor may, from time to time, provide enhancements or improvements to the features or functionality of the Software, which may include patches, bug fixes, updates, upgrades, and other modifications (collectively, "Updates").

Such Updates may modify or remove certain features and/or functionalities of the Software.

The Licensee agrees that the Licensor has no obligation to:

- (i) provide any Updates, or
- (ii) continue to provide or enable any specific features or functionalities of the Software.

The Licensee further agrees that all Updates and other modifications:

- (i) shall be deemed an integral part of the Software; and
- (ii) shall be governed by the terms and conditions of this EULA.

5. Third-Party Software

The Software may include or be distributed with certain third-party software that is subject to open source or other licensing terms.

The Licensee agrees to comply with all applicable license terms governing such third-party software. In the event of any conflict between the terms of this Agreement and the license terms of any such third-party software, the latter shall prevail.

6. Warranty Disclaimer

This Software is provided "as is," without any warranties of any kind, either express or implied. The Licensor disclaims all warranties, including but not limited to any implied warranties of merchantability, non-infringement, and fitness for a particular purpose.

7. Limitation of Liability

Under no circumstances shall the Licensor be liable for any indirect, incidental, consequential, special, or punitive damages arising out of or in connection with the use or inability to use the Software, even if the Licensor has been advised of the possibility of such damages. Such damages include, but are not limited to, loss of data, loss of profits, damage to goodwill, or business interruption.

To the maximum extent permitted by applicable law, the Licensee hereby unconditionally and irrevocably waives any statutory or other legal rights or remedies that may arise from or relate to the use of the Software.

8. Indemnification

Licensee agrees to indemnify and hold Licensor and its parents, subsidiaries, affiliates, officers, employees, agents, partners and licensors (if any) harmless from any claim or demand, including reasonable attorneys' fees, due to or arising out of : (a) use of the Software; (b) violation of EULA or any law or regulation; or (c) violation of any right of a third party.

9. Termination

This EULA shall remain in effect from the Effective Date and continue in full force and effect unless and until it is earlier terminated in accordance with this Section or otherwise terminated by the Licensor.

Notwithstanding the foregoing, in the event the Licensee breaches any provision of this EULA, the Licensor may terminate this EULA immediately without notice and shall bear no liability whatsoever for such termination.

Upon termination of this EULA, the Licensee shall immediately cease all use of the Software and shall destroy all copies of the Software, in whole or in part (including any backups), and shall not use, retain, transfer, or otherwise preserve the Software in any form.

10. Export Control

The Licensee shall not export, re-export, or transfer the Software, or any copies or modified versions thereof, in violation of any applicable export control laws or regulations.

11. Severability

If any provision of EULA is held to be unenforceable or invalid, such provision will be changed and interpreted to accomplish the objectives of such provision to the greatest extent possible under applicable law and the remaining provisions will continue in full force and effect.

12. Waiver

Except as provided herein, the failure to exercise a right or to require performance of an obligation under EULA shall not affect a party's ability to exercise such right or require such performance at any time thereafter nor shall the waiver of a breach constitute a waiver of any subsequent breach.

13. Entire Agreement

EULA constitutes the entire agreement between Licensee and Licensor regarding Licensee's use of the Software and supersedes all prior and contemporaneous written or oral agreements between Licensee and Licensor.

14. Governing Law

EULA, and any disputes arising out of or in connection with it, shall be governed by and construed in accordance with the laws of Taiwan (Republic of China, R.O.C.), without regard to its conflict of law principles.

15. Survival

The provisions of this EULA that by their nature should survive termination shall remain in effect, including Sections 2 (Restrictions), 3 (Intellectual Property), 5 (Third-Party Software), 6 (Warranty Disclaimer), 7 (Limitation of Liability), 8 (Indemnification), and 14 (Governing Law).

CONFIDENTIAL



終端使用者授權協議 (EULA) – Avalue Driver

安勤科技股份有限公司（以下簡稱「授權人」）特此授予最終使用者（以下簡稱「被授權人」）一項**有限、非專屬、不可轉讓且可隨時撤銷之使用授權**，僅得於授權人所提供或明確授權之裝置（以下簡稱「設備」）上，使用本 Avalue Driver（以下簡稱「本軟體」）。

被授權人於下載、安裝、複製或以其他任何方式使用本軟體，即視為已閱讀、瞭解並同意受本終端使用者授權協議（以下簡稱「本協議」）之所有條款與條件之拘束。倘被授權人不同意本協議之任何條款，則不具任何使用本軟體之權利，亦不得進行安裝、複製、存取或使用行為。

第 1 條 定義

就本協議而言：

- (1)「**授權人**」：係指安勤科技股份有限公司及其關係企業、子公司、母公司及任何由其實質控制之實體。
- (2)「**被授權人**」：係指根據本協議獲得軟體授權之終端使用者。
- (3)「**軟體**」：係指 Avalue Driver 及由授權人提供關於該軟體的任何更新、修改或文件。
- (4)「**設備**」：係指由授權人製造、銷售、提供，或經授權人書面明確授權的硬體產品。
- (5)「**使用**」：係指根據本協議在設備上安裝、執行或以其他方式使用該軟體之行為。
- (6)「**生效日**」：指被授權人首次安裝或開始使用本軟體之日期，兩者以時間較早者為準。

第 2 條 使用限制

被授權人不得：

- (1)修改、反向工程、反編譯、反組譯或創作本軟體的衍生作品。
- (2)未經授權人書面同意，出租、租賃、再授權、分發、轉讓、傳輸、託管、外包、揭露、商業利用或以其他方式轉讓本軟體。
- (3)將本軟體使用在任何未經授權或其他第三方之設備。
- (4)移除、更改或遮蔽本軟體中授權人或其關係企業、合作夥伴、供應商或授權人之所有權聲明（包括著作權或商標聲明）。
- (5)將本軟體用於任何非法用途，包括但不限於違反出口管制法律、或用於核能技術、軍事系統或武器開發等情境。

第 3 條 智慧財產權

授權人保留對本軟體之所有權、所有權利與利益，包括但不限於其著作權、專利權與其他智慧財產權。被授權人不得在任何時候主張或聲稱擁有本軟體或其相關智慧財產權之所有權。

第 4 條 軟體更新

- (1)授權人得不定期提供本軟體功能或特性的強化或改善，包括但不限於修補程式、錯誤修正、更新、升級及其他形式之修改（以下統稱「更新」）。
- (2)此類更新可能修改或移除本軟體的部分功能。
- (3)被授權人同意授權人無義務：
 - ①提供任何更新。
 - ②持續提供或啟用本軟體的特定功能。
- (4)被授權人進一步同意，所有更新或其他修改：
 - ①應視為本軟體不可分割之一部分；且
 - ②應受本協議之條款與條件約束。

第 5 條 第三方軟體

- (1) 本軟體可能包含或隨附某些開源或其他授權條款約束之第三方軟體。
- (2) 被授權人同意遵守該第三方軟體適用之所有授權條款。若本協議條款與第三方軟體授權條款發生衝突，以該第三方軟體之授權條款為準。

第 6 條 保證免責聲明

- (1) 本軟體係「按現狀」提供，不含任何形式之明示或默示保證。
- (2) 授權人對本軟體不負任何明示或默示之保證責任，包括但不限於對適售性、非侵權性、及特定目的之適用性所為之默示保證，授權人於此明確表示否認。

第 7 條 責任限制

- (1) 在任何情況下，授權人對於因使用或無法使用本軟體所生之任何間接性、附帶性、衍生性、特殊性或懲罰性損害，概不負賠償責任，即使授權人已被告知該等損害可能發生之風險，亦同。前述損害包括但不限於資料遺失、利潤損失、商譽受損或業務中斷等損害。
- (2) 在適用法律所允許之最大範圍內，被授權人茲此無條件且不可撤回地放棄基於其使用本軟體所可能主張之一切法定權利或其他法律上之救濟。

第 8 條 賠償責任

被授權人同意，就因下列情事所致之一切索賠、請求、損害、損失、責任、費用或支出（包括合理之律師費用及訴訟費用），對授權人及其母公司、子公司、關係企業、員工、主管、代理人、合作夥伴及授權來源方（如有）負擔賠償責任並使其免受損害：

- (1) 使用本軟體；
- (2) 違反本協議或任何適用之法律或法規；或
- (3) 侵害第三人之權利（包括但不限於智慧財產權）。

第 9 條 終止條款

本協議自生效日起持續有效，除非依本條規定提前終止或經授權人另行終止，否則將持續有效；惟如被授權人違反本協議之任何條款時，授權人無須另行通知而得逕行終止協議，且不負任何法律或賠償責任。

本協議終止後，被授權人應立即停止使用本軟體，並應銷毀所有本軟體之完整或部分複本（包括備份），不得再行使用、轉讓或以其他任何形式保留。

第 10 條 出口管制

被授權人不得將本軟體或其任何複製品、修改版本或衍生作品，出口、再出口或以其他方式轉移至任何違反適用之出口管制法律或法規之地區、對象或用途。

第 11 條 條款可分性

若本協議任何條款被視為無效或不可執行，該條款應在法律允許範圍內進行調整，以最大程度實現原條款之目的，且其他條款仍繼續完全有效。

第 12 條 權利之不放弃

除本協議另有規定外，任一方未行使其權利或未要求對方履行義務，不應視為其放棄該項權利或義務；放棄對某次違約行為之權利亦不得視為放棄對後續違約行為之追訴權利。

第 13 條 完整協議

本協議構成授權人與被授權人就本軟體使用之完整協議，並取代雙方先前所有口頭或書面之協議與溝通內容。



第 14 條 準據法

本協議及其所引發或相關之任何爭議，均應依中華民國法律解釋與適用，不考慮其法律衝突原則。

第 15 條 條款存續

本協議中具有存續性質之條款，在協議終止後仍繼續有效，包括但不限於第 2 條（使用限制）、第 3 條（智慧財產權）、第 5 條（第三方軟體）、第 6 條（保證免責）、第 7 條（責任限制）、第 8 條（賠償責任）及第 14 條（準據法）。

CONFIDENTIAL